

Registration and Licensing of Industrial Undertakings Rules, 1952

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Union of India - Act

Registration and Licensing of Industrial Undertakings Rules, 1952

UNION OF INDIA

India

Registration and Licensing of Industrial Undertakings Rules, 1952

Rule REGISTRATION-AND-LICENSING-OF-INDUSTRIAL-UNDERTAKINGS-RULES-1952 of 1952

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Registration and Licensing of Industrial Undertakings Rules, 1952

Last Updated 29th December, 2020

1.

Short title.

- These rules may be called the Registration and Licensing of Industrial Undertakings Rules, 1952.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,

(i)

"the Act" means the Industries (Development and Regulation) Act, 1951 (LXV of 1951);

(ii)

"effective steps" shall mean one or more of the following:

(a)

[that 60 per cent or more of the capital issued for an industrial undertaking which is a public company within the meaning of the Indian Companies Act, 1913 (VII of 1913), has been paid up;]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

(b)

that a substantial part of the factory building has been constructed;

(c)

that a firm order has been placed for a substantial part of the plant and machinery required for the undertaking.

3.

Application for registration.

- [(1) An application for the registration of an existing industrial undertaking shall be made, in triplicate, to the [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

, Government of India, New Delhi, in Form A or B, as the case may be, appended to these rules, at least three months before the expiry of the period fixed under sub-section (1) of Section 10 of the Act in relation to that industrial undertaking;]

Provided that an application which is not made in time may be entertained by the [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

, if the applicant satisfies that Ministry that there was sufficient cause for not making the application in time.

(1A)

[Where an application for the registration of an industrial undertaking is pending at the commencement of the Industries (Development and Regulation) Amendment Act, 1953, no fresh application for such registration shall be necessary under the rule and any such pending application shall be disposed of in accordance with the provisions of these rules]

[Inserted by S.R.O. 1856, dated 1st October, 1953]

(1B)

[Where an industrial undertaking consists of more than one factory a separate Form A or B, as the case may be, shall be filled and sent in respect of each factory.]

[Inserted by S.R.O. 1856, dated 1st October, 1953]

(2)

[Each application shall be accompanied by a crossed demand draft for Rs. 2,500 drawn on the State Bank of India, Nirman Bhawan, New Delhi, in favour of the Pay and Accounts Officer, [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted by G.S.R. 100(E), dated 18th February, 1987, for sub-rule (2) as amended by G.S.R. 392(E), dated 17th September, 1974.]

, Government of India, New Delhi]

4.

Acknowledgment of application.

- On receipt of application, the receiving officer shall note thereon the date of its receipt and shall send to the applicant an acknowledgment stating the date of receipt.

5.

Power of Central Government to ask for additional information.

- The [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

or the authority appointed by it [in this behalf]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

may require the applicant to furnish within a period to be specified by it, such additional information as it may consider necessary for the purpose of registration.

6.

Grant of registration certificate.

-If an application made under sub-rule (1) of rule 3 falls within the scope of that rule, the [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

, shall, after such investigation as it may consider necessary, grant to the applicant, before the [expiry of the period fixed under Section 10 of the Act]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

, a certificate of registration in Form C appended to these rules. If an application made under sub-rule (1) of rule 3 does not fall within the scope of that rule, the [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

shall inform the applicant accordingly.

7.

Application for licence.

(1)

Application for a licence or permission for the establishment of a new industrial undertaking or any substantial expansion of [for the production or manufacture of any new article in]

[Inserted by G.S.R. 1781, dated 11th December, 1967]

an industrial undertaking shall be made before taking any of the following steps :

(a)

raising from the public any part of the capita required for the undertaking or expansion [or the production or manufacture of the new article]

[Inserted by G.S.R. 1781, dated 11th December, 1967]

(b)

commencing the construction of any part of the factory building for the undertaking or expansion [or the production or manufacture of the new article]

[Inserted by G.S.R. 1781, dated 11th December, 1967]

(c)

placing order for any part of the plant and machinery required for the undertaking or expansion [or the production or manufacture of the new article]

[Inserted by G.S.R. 1781, dated 11th December, 1967]

(1A)

[An application for a licence or permission for changing the location of the whole or any part of an industrial undertaking which has been registered or in respect of which a licence or permission has been issued shall be made before taking any of the following steps.]

[Inserted by G.S.R. 1781, dated 11th December, 1967]

(a)

the acquisition of land or the construction of premises for the purpose of housing the industrial undertaking at the proposed new site;

(b)

the dismantling of any part of the plant and machinery at the existing site.]

[* * *]

[Substituted-rules (2) and (2A), omitted by G.S.R. 274(E), dated 19th June, 1974.]

(3)

□

[Substituted by G.S.R. 100(E), dated 18th February, 1987, for sub-rule (3) as amended by G.S.R 399(E), dated 23rd September, 1971 and G.S.R. 392(E), dated 17th September, 1974.]

Each application shall be accompanied by a crossed demand draft for Rs. 2,500 drawn on the State Bank of India, Nirman Bhawan, New Delhi, in favour of the Pay and Accounts Officer, [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industry (Department of Industrial Development)' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

, Government of India, New Delhi.

8.

Acknowledgment of application.

-On receipt of the application, the receiving officer shall note thereon the date of its receipt, and shall send to the applicant an acknowledgment stating the date of receipt.

9.

Power to call additional information.

- The [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

or the authority appointed by it [in the this behalf]

[Substituted by G.S.R. 691(E), dated 1st March, 1957]

may require the applicant to furnish, within a period to be specified by it, such additional information as it may consider necessary.

10.

[Application to be referred to committee.

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

(1)

The [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade] shall refer the application to a Committee appointed under sub-rule (2):]

[Provided that where an application relates to the extension of the period of validity of an industrial licence or to the issue of a carry-on-business licence or to diversification within the existing licensed capacity in respect of such scheduled industries as may, from time to time, be decided by the Central Government, having regard to the maximum of production, better utilization of existing plant and machinery and other factors, the Ministries concerned may dispose of such application without reference to the Committee.]

[Added by G.S.R. 559(E), dated 15th November, 1975]

(2)

[The Central Government may, by notification in the Official Gazette, appoint one or more committees, consisting of such number of members as it may think fit, to represent the Ministries or Departments of the Central Government dealing with,-

(a)

Department for Promotion of Industry and Internal Trade;

(b)

Industries specified in the First Schedule to the Act;

(c)

Home Affairs;

(d)

Commerce;

(e)

Corporate Affairs:

Provided that the Central Government may, if it deems fit, include in such committee any other member to represent any other Ministry or Department.]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

(3)

[A committee appointed under sub-rule (2) may co-opt one or more representatives of other Ministries of the Central Government or of any State Government concerned, wherever it is necessary.]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

11.

Submission of report by the committee.

-After such investigation as may be necessary, the Committee to which an application has been referred under rule 10 shall submit a report to the [Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade]

[Substituted 'Ministry of Industrial Development' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

12.

Contents of the report.

- In making the report under rule 11, the [* * *]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

Committee shall have regard to the approved plans, if any, of the Central Government for the development of the scheduled industry concerned and, where no such plans exist, to the existing capacity of the scheduled industry, the demand and supply position, availability of raw materials and plant and machinery. The report should, among other matters, contain recommendations regarding capital and its structure, suitability of the location proposed from the point of view of the approved plans for the industry, capacity of the plant to be installed, availability of rail-transport capacity, availability of technical and other skilled personnel required, and collaboration, if any, with foreign manufacturers.

13.

Recommendation regarding public enquiry.

- If the [Committee referred to in rule 11]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

is of the opinion that a public enquiry is necessary in respect of any application it may recommend such a step to the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

14.

Invitation of applications.

(1)

The Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

or the authority appointed by it [in this behalf may]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

, where it considers necessary invite, by means of a notice published in the Gazette of India, applications for the grant of licences for the establishment of new industrial undertakings in any scheduled industry.

(2)

An application received under sub-rule (1) shall be dealt with in the manner laid down in rules 10 to 13.

15.

Grant of licence or permission.

(1)

The Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

shall consider the report submitted to it under rule 11, and where it decides that a licence or permission, as the case may be, should be granted it shall inform the applicant accordingly, not later than [five months]

[Substituted 'three months' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

from the date of receipt of the application, or the date on which additional information under rule 9 is furnished, whichever is later.

(2)

Where the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

considers that certain conditions shall be attached to the licence or permission, or that the licence or permission should be refused, it shall not later than [five months]

[Substituted 'three months' by Notification No. G.S.R. 637(E), dated 4.9.2019.]

from the date of receipt of the application or the date on which additional information under rule 9 is furnished, whichever is later, give an opportunity to the applicant to state his case, before reaching a decision.

(3)

Where a licence or permission has been refused the applicant shall be informed of the reasons for such refusal.

(4)

Licences or permissions shall be in Form F appended to these rules.

16.

Variation or amendment of licences.

(1)

Any owner of an industrial undertaking in respect of which a licence has been granted, who desires any variation or amendment in his licence shall apply to the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

giving the reasons for the variation or amendment.

(2)

The Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

after carrying out such investigation as it may consider necessary, may vary or amend the licence. The Ministry of Commerce and Industry may also consult the Licensing Committee before coming to a decision.

17.

Revocation of licences.

- The Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

shall, before exercising its power of revocation of a licence under sub-section (1) of Section 12 of the Act, give an opportunity to the licensee to state his case.

18.

Review of licences by a sub-committee.

- A sub-committee of the Central Advisory Council shall be constituted which will review all licences issued, refused varied amended or revoked from time to time, and advise Government on the general principles to be followed in the issue of licences for establishing new undertakings or substantial expansion of existing undertakings. The results of the review shall be reported to the Central Advisory Council.

19.

Submission of returns.

- [(1)]

[Renumbered by S.R.O. 1856, dated 1st October, 1956]

Every owner of a industrial undertaking in respect of which a licence or permission has been granted [under the Act]

[Substituted by S.R.O. 1856, dated 1st October, 1956]

shall send every half year ending 30th June and 31st December, commencing from the date of grant of the licence or permission, as the case may be, till such time as the industrial undertaking commences production a return [with five spare copies]

[Substituted by S.R.O. 1856, dated 1st October, 1956]

in Form G appended to these rules, to the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

, Government of India, New Delhi, [or to any authority appointed by it in this behalf. The return relating to every half year shall be sent within one month after the expiry of that half year.]

[Inserted by S.R.O. 691, dated 1st March, 1957]

(2)

[Where any condition has been attached to a licence or permission granted in respect of an industrial undertaking to the effect that certain steps should be taken within a period specified therein, every owner of such an undertaking shall send a return, with five spare copies, in Form G appended to these rules, to the Ministry of [Industrial Development]

[Inserted by S.R.O. 1856, dated 1st October, 1953]

, Government of India, New Delhi [or to any authority appointed by it in this behalf]

[Inserted by S.R.O. 1856, dated 1st October, 1953]

showing the progress made in taking such steps at the expiry of the period so specified. The return shall be sent within a period of seven days from the expiry of the period so specified.]

(3)

Every owner of an industrial undertaking which has been registered by reason of effective steps having been taken for

the establishment of that undertaking before the commencement of the Act shall send, every half year ending on the 30th June and the 31st December, and commencing from 31st December, 1953, till such time as the industrial undertaking commences production a return with five spare copies, in Form G appended to these rules, to the Ministry of [Industrial Development]

[Inserted by S.R.O. 1856, dated 1st October, 1974]

, Government of India, New Delhi or to any authority appointed by it in this behalf.

The return relating to every half year shall be sent within one month of the expiry of that half year.

19A.

[Notice of certain facts to be given. - (1) If there is any change in the name of registered industrial undertaking or an undertaking in respect of which a licence or permission has been granted under the Act the owner thereof, shall within fourteen days from the date of such change give notice in writing of the fact to the Ministry of [Industrial Development]

[Inserted by S.R.O. 1856, dated 1st October, 1974]

, Government of India, New Delhi and forward the registration certificate or the licence, as the case may be, to that Ministry for endorsing thereon the change in the name of undertaking.]

(2)

If there is any change in the owner of a registered industrial undertaking or an undertaking in respect of which a licence or permission has been granted the new owner thereof shall, within fourteen days from the date of such change give notice in writing of the fact to the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

, Government of India, New Delhi, and forward the registration certification or the licence, as the case may be, to that Ministry for endorsing thereon the change in the owner of the industrial undertaking.

(3)

If by reason of (a) reduction in the number of workers employed; (b) discontinuation of the production of articles falling within the scope of the Act; or (c) any other reason, all or any of the provisions of the Act become inapplicable to a registered industrial undertaking or an undertaking in respect of which a licence or permission has been granted and continue to be so inapplicable for a period of six months, the owner thereof shall, within fourteen days of the expiry of the said period of six months give notice in writing of the fact to the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

, Government of India, New Delhi.

(4)

If a registered industrial undertaking or an industrial undertaking in respect of which a licence or permission has been granted, has been closed for a period exceeding thirty days, the owner thereof, shall, within seven days of the expiry of the said period of thirty days, give notice in writing of the fact to [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

Government of India, New Delhi.

(5)

If any decision has been taken by a competent authority that a registered industrial undertaking or an industrial undertaking in respect of which a licence or permission has been granted shall be liquidated, the owner thereof shall, within fourteen days from the date of such a decision, give notice in writing of the fact to the Ministry of [Industrial Development]

[Substituted by G.S.R. 270(E), dated 14th June, 1974]

, Government of India, New Delhi, [and return the registration certificate or the licence, as the case may, to that Ministry.]

[Inserted by S.R.O. 691, dated 1st March, 1957]

19B.

[Loss of registration certificate or licence.

[Inserted by S.R.O. 1856, dated 1st October, 1953]

- Where a Registration Certificate, a licence or a permission granted under these rules, is lost, destroyed or mutilated, a duplicate may be granted on receipt of a treasury challan of Rs. 5.]

20.

Penalty for contravention of rules.

- Whosoever contravenes or attempts to contravene or abets the contravention of any of these rules shall be punishable

under Section 24 of the Act.

21.

Allotment of controlled commodities to licensed undertakings.

- The owner of an industrial undertaking in respect of which a licence or permission has been granted shall be eligible to the allotment of controlled commodities required by him for the construction or operation or for both construction and operation of his undertakings on such preferential basis as the Central Government may determine from time to time. In determining such preference the Central Government shall have due regard to the requirements of existing industrial undertakings.

22.

Concession in the grant of import licences to undertakings.

- The owner of an industrial undertaking in respect of which a licence or permission has been granted shall be eligible for the issue of licences or for the import of goods required by him for the construction or operation or for both construction and operation of his undertaking on such preferential basis as the Central Government may determine from time to time. In determining this preference which may include such concession as the submission of one consolidation application in respect of the requirements from each currency area for all items shown as licensable to actual users submission of separate application for highly specialised items even though such items may not be shown as licensable to actual users and priority in the matter of import from different currency areas, the Central Government shall have due regard to the requirements of existing industrial undertakings.

[Form A]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

Prescribed under rule 3 of the Registration and Licensing of Industrial Undertaking Rules, 1952 (as revised)

Application For Registration

1. This form is to be used in the following cases :

(a)

industrial undertakings producing on the 8th May, 1952 or at any time during the twelve months preceding that date, articles relatable to the industries specified in the First Schedule to the Industries (Development and Regulation) Act, 1951, as originally enacted;

(b)

industrial undertakings producing on 1st October, 1953 or at any time during the twelve months preceding that date, any articles relatable to the industries added to the First Schedule by the Industries (Development and Regulation) Amendment Act, 1953;

(c)

[industrial undertakings producing on 1st March, 1957, or at any time during the twelve months preceding that date, any article relatable to the industries included in the First Schedule by the Industries (Development and Regulation) Amendment Act, 1956]

[Inserted by S.R.O. 691, dated 1st March, 1957]

(d)

industrial undertakings producing on 7th February, 1974, or at any time during the twelve months preceding that date, any article relatable to the industries added to the First Schedule by Industries (Development and Regulation) Amendment Act, 1973.

2. Particulars given in the application should show the position as on 8th May, 1952, [1st October, 1953, 1st March, 1957]

[Inserted by S.R.O. 691, dated 1st March, 1957]

, [or 7th February, 1974]

[Inserted by S.R.O. 691, dated 1st March, 1957]

as is applicable to the schedule industry concerned.

1. Schedule Industry or Industries to which the articles produced relate.

2. Registration number under the Indian Factories Act and the date of registration.

3. Name of the industrial undertaking.

Address:

(a)

Head Office.

(b)

Factory.

4. Ownership. Whether proprietary, partnership, private limited or public limited.

5. Names of proprietors, partners or Board of Director and their addresses.

6. Name and address of the owner of the factory in terms of Section 3 (f) of the Act.

7. Capital structure

(a)

In the case of companies registered under the Indian Companies Act, 1913-

(i)

Authorized Capital- : Number : Value : Total

Preference shares

Ordinary shares

Deferred shares

Any other class of shares.

(ii)

Issued Capital-

Preference shares

Ordinary shares

Deferred shares

Any other class of shares.

(iii)

Paid-up-capital-

Preference shares

Ordinary shares

Deferred shares

Any other class of shares

(iv)

Debentures.

(v)

Other borrowings.

(b)

In the case of others

(i)

Capital invested by the owner excluding borrowings.

(ii)

Share of each of the partners or of members of an association.

(iii)

Borrowings.

8. Name and address of managing agents, if any, and the principal clauses of managing agency agreement.

9. A copy each of the last three years balance-sheets and profit and loss accounts. (To be attached to each copy of the application).

10. (a) Foreign capital invested. Terms of agreement, if any, with foreign collaborator including terms in regard to royalty, etc.

(b)

Detail of foreign technicians employed.

11. Approximate land under control of the factory-

(1)

for factory administration purposes

(a)

in use,

(b)
available for expansion,

(2)
for township and other facilities-

(a)
in use,

(b)
available for expansion.

12. Water supply.

(a)
Is it ample for the requirements of-

(b)
factory, and

(c)
township or staff quarters?

(State approximate quantity).

(b)
It is drawn from public supply?

(c)
Effluent problems, if any.

13. Power supply:

(a)
Total requirements drawn from -

(1)
own generating station,

(2)
public supply.

(b)
In case of own station give brief particulars of plant in operation.

14. (a) Nature of plant and equipment section by section.

Main plant and machinery items grouped under different sections following the standard practice in vogue in each industry.

(b)
Replacement requirement over next five years.

15. Transport facilities for incoming raw materials and out-going finished products.

16. Manufacturing activities

(a)
Whether continuous or shift operation.

(b)
Number of shifts generally worked.

(c)
Number of working days in a month/year.

Note. - Allow for compulsory holidays and for possible interruptions arising from breakdowns, overhauling and maintenance repairs separately on this basis of your past experience.

(d)
Monthly installed capacity

Name
of the manufactured product

Capacity

17. Past production including by-product during the last three calendar-

Name

of principal product or by-product

Quantity

Value

Note. - In the case of seasonal industries, e.g. sugar, give figures relating to the season.

18. Staff and labour employed-Head Office : Factory : Total

(a)

Managerial

(b)

Supervisory-

Technical

Non-technical

(c)

Clerical

(d)

Labour-

Skilled

Semi-skilled

Unskilled

(e)

Other categories, if any.

Place

Date

Signature of Applicant.

(To be filled in by Government of India)

Date of receipt of application.

Signature of the Receiving Officer.

[Form B]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

Prescribed under rule 3 of the Registration and Licensing of Industrial Undertakings Rules, 1952 (as revised)

Application For Registration

1. This form is to be used in the following cases :

(a)

Industrial undertakings which had taken effective steps as defined in rule 2(ii) of these rules, on or before the 8th May, 1952, for the production of any article relatable to the industries specified in the First Schedule to the Industries (Development and Regulation) Act, 1951, as originally enacted;

(b)

industrial undertakings which had taken effective steps as defined in rule 2(ii) of these rules, on or before the 1st October, 1953, for the production of articles relatable to the industries added to the First Schedule by the Industries (Development and Regulation) Amendment Act, 1953;

(c)

[industrial undertakings which had taken effective steps as defined in rule 2(ii) of these rules, on or before the 1st March, 1957, for the production of articles relatable to industries included in the First Schedule by the Industries (Development and Regulation) Amendment Act, 1956]

[Inserted by S.R.O. 691, dated 1st March, 1957]

(d)

[industrial undertakings which has taken effective steps as defined in rule 2(ii) of these rules, on or before the 7th February, 1974, for the production of articles relatable to the industries added to the First Schedule by the Industries (Development and Regulation) Amendment Act, 1973.]

[Inserted by G.S.R. 284(E, dated 25th June, 1974]

2. Particulars given in the application should show the position as on the 8th May, 1952, [1st October, 1953, [1st March,1957]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

or 7th February, 1974] as is applicable to the schedule industry concerned.

Note. - Where an industrial undertaking consists of more than one factory, a separate form should be filled and sent, for each of the factories.

1. Schedule industry or industries to which the articles produced relate;

2. Name and address of the applicant;

3. Name of the industrial undertaking;

Address:

(a)

Head Officer;

(b)

Factory.

4. Ownership. Whether proprietary, partnership, private limited or public limited company.

5. Names of proprietors, partners or Board of Directors and their address.

6. Name and address of the owner of the factory in terms of Section 3 (f) of the Act.

7. Whether sanction for capital issue has been applied for. If so, the number and date of sanction of capital issue. If not, how the undertaking is or is to be financed.

8. What percentage of the total capital has been raised or subscribed.

9. Types, number and values of different classes of shares authorized, issue and paid-up or arrangements being made for (a) in the case of companies registered under the Indian Companies Act, 1913.

(i)

Authorized Capital :

Number

Value

Total

Preference

shares

Ordinary

shares

Deferred

shares

Any

other class of shares

(ii)

Issued Capital:

Preference

shares

Ordinary

shares

Deferred

shares

Any

other class of shares

(iii)

Paid-up Capital:

Preference

shares

Ordinary

shares

Deferred

shares

Any
other class of shares

(iv)

Debentures

(v)

Other borrowings

(b)

In the case of others :

(i)

Capital invested by the owner excluding borrowings.

(ii)

Shares of each of the partners or members of an association.

(iii)

Borrowings.

10. Name and address of the managing agents, if any.

11. Obligations, rights and privileges of managing agents in the constitution and working of the company.

12. Is any foreign collaboration or investment envisaged. If so, the extent and nature of such collaboration. Give a copy of the agreement, if any.

13. Are foreign technicians required. Number and types of such personnel. (Approximate indication may be given).

14. Location or proposed location of the factory.

Tehsil

District

State

15. Area of land required and whether it has been secured.

16. Particulars of buildings erected.

17. What portion of the factory building has been constructed and what proportion in value does it bear to the entire cost of the factory buildings.

18. Lines of manufacture proposed.

Name

of product and by-product

Monthly

proposed installed capacity.

19. Number of estimated working days in a year.

20. Indicate your requirements of rail transport for movement of raw materials and finished products.

21. Estimated requirements of main raw materials.

Name

of raw material

Whether

indigenous or imported; if latter, country of origin

Quantity

required per year

Estimated

value

22. Requirements of capital equipment-

Total value of equipment required.

(i)

Imported

(a)

from sterling area,

(b)

from dollar and hard currency area.

(ii)

Indigenous.

23.

What percentage in value of item 22 has been-

(a)

ordered and received,

(b)

ordered and not yet received.

24.

Water supply :

(a)

Will it be ample for the requirements of-

(1)

factory and

(2)

township or staff quarters (State approximate quantity.)

(b)

Will it be drawn from public supply,

(c)

Effluent problems, if any.

25.

Power supply-

(a)

Total requirements proposed to be drawn from-

(1)

own generating station;

(2)

public supply.

(b)

In case of own station, give brief particulars of plant in operation.

26.

Staff and labour

Already

employed

Proposed

to be employed on implementation of the project

(a)

Managerial

(b)

Supervisory:

Non-technical

(c)

Clerical

(d)

Labour:

Skilled

Semi-skilled

Unskilled

(e)

Other categories, if any.

27.

Give a brief description of the processes involved in the manufacture and the factors favourable for their adoption in the location proposed by you.

Date

Place

Signature of Applicant

(To be filled in by the Government of India)

Date of receipt of the application.

Signature of the Receiving Officer.]

Form C

Prescribed under rule 6 of the Registration and Licensing of Industrial Undertaking Rules, 1952

Registration No

Government Of India

Ministry Of Commerce And Industry

New Delhi, the19....

Certified that the Industrial Undertaking details of which are mentioned below has been registered in terms of Section 10 of the Industries (Development and Regulation) Act, 1951 (LXV of 1951).

Details:

1. Scheduled Industry.

2. Name of Industrial Undertaking.

Address

Name of owner

Address

3. [Articles produced or to be produced]

[Inserted by G.S.R. 369(E), dated 17th August, 1974]

4. [Annual productive capacity of such articles]

[Inserted by G.S.R. 369(E), dated 17th August, 1974]

Signature of Officer

Seal of the Ministry.

[* * *]

[Forms D-I, D-II, E, E-I, E-II omitted by Notification No. 274(E), dated 19th June, 1974]

[Form F]

[USbstitued by S.R.O. 1856, dated 1st October, 1953]

Prescribed under rule 15(4) of the Registration and Licensing of Industrial Undertakings Rules, 1952 (as revised)

Licence No.....

Permission

Government Of India

Ministry Of Commerce And Industry

New Delhi, the19....

Licence

An application No..... datedfor ahaving been received fromPermission for..... under rule 7 of the Registration and Licensing of Industrial Undertakings Rules, 1952, the Central Government, in exercise of the powers conferred by rule 15(2) of the said rules, hereby grant thislicence/permissionto.....subject to the following conditions :

(1)

(2)

(3)

Any prospectus or other document by which the public is invited to subscribe capital for this undertaking shall contain the following statement :

"A Licence/Permission has been obtained from the Central Government forof which a copy is open to public inspection at the Head Office of the Company. It must be distinctly understood that in granting this.....licence/permission.....the Government of India do not take any responsibility for the financial soundness of this

undertaking or for the correctness of any of the statements made or opinions expressed in regard to."

Signature of the Officer.

Seal of the Ministry.

[Form "G"]

[Substituted by S.R.O. 1856, dated 1st October, 1953]

Prescribed under rule 19 of the Registration and Licensing of Industrial Undertakings Rules, 1952 (as revised)

Report Of The Progress Made In The Establishment Of Industrial Undertakings

This form is to be used for reporting progress made in the following cases-

(a)

In the establishment of industrial undertakings or substantial expansions, whether registered or licensed.

(b)

In the manufacture of new articles.

(c)

In changing the location of industrial undertakings.

1. Scheduled industry to which the articles manufactured by the undertaking relate.

2. Name and address of the industrial undertaking.

3. Number and address of the Registration Certificate/Licence/ Permission issued to the undertaking.

In The Case Of Establishment Of Industrial Undertakings Of Manufacture Of New Articles

4. [(a) In the case of a public company within the meaning of the Companies Act, 1956.]

[Substituted by S.R.O.691, dated 1st MArch, 1957]

What percentage of the total issued capital has been paid-up?

(b)

In the case of others.

What percentage of the total capital required for the purpose has been raised?

5. What percentage in value of total requirements of capital equipment has been-

(a)

ordered and received.

(b)

ordered and not yet received. [Indicate the expenditure incurred on this item during the period covered by the Report]

[Inserted by S.R.O. 691, dated 1st March, 1957]

6. Whether land has been acquired for the factory. [Indicate the expenditure incurred on this item during the period covered by the Report.]

[<A TITLE =]

7. Progress made in the construction of the factory and the installation of plant and machinery. [Indicate the expenditure incurred on this item during the period covered by the Report]

[Substituted by S.R.O. 691, dated 1st March, 1957]

8. Progress made in getting supply of power and water.

9. Progress made in the recruitment of foreign technicians, if any.

[Indicate the expenditure incurred on this item during the period covered by the Report.]

[Substituted by S.R.O. 691, dated 1st March, 1957]

10.

Staff and labour

Employed

before the implementation of the project.

Now

employed

(a)

Managerial

(b)

Supervisory

Technical

Non-technical

(c)

Clerical

(d)

Labour-

Skilled

Semi-skilled

Unskilled

(e)

Other categories, if any.

11.

Pollution Control (Steps taken to prevent pollution)

(a)

Has the approval for the pollution control steps been received from the appropriate authority?

(i)

Air

Yes

No

(ii)

Water

(b)

Expenditure on Land, Civil construction, know-how and equipment:

(i)

Land

Estimated

cost

Revised

cost

Expenditure

incurred

(ii)

Civil construction

(iii)

Know-how

(1)

Indigenous

(2)

Imported

(iv)

Equipment

(c)

Likely dates of completion:

(1)

Air

Installation

Month year

Tribunal

Runs Month Year

(2)

Water

(3)

Soil

In The Case Of Substantial Expansions Or Change Of Location

13. [(a) In the case of a public company within the meaning of the Companies Act, 1956.]

[Substituted by S.R.O. 691, dated 1st March, 1957]

What percentage of the total issued capital has been paid-up?

(b)

In the case of others.

What percentage of the total capital required for the purpose has been raised?

14. Whether any land required for the undertaking has been acquired.

15. Progress made in the construction of factory buildings and the installation of plant and machinery at the new site.

16. Whether additional power and water required has been secured.

17. Progress made in the requirement of foreign technicians, if any, number and types secured.

18. What percentage in value of total requirement of the capital equipment has been

(a)

ordered and received.

(b)

ordered and not yet received.

19.

Staff and labour

Employed

before the substantial expansion or change of location was undertaken.

Now

employed

(a)

Managerial

(b)

Supervisory

Technical

Non-Technical.

(c)

Clerical.

(d)

Labour-

Skilled

Semi-skilled.

Unskilled.

(e)

Other categories, if any.

20.

Product and by-product manufactured.

Name

of product or by-product

Present

monthly installed capacity

Present

daily output

Place

.....

Date

.....

Signature

of the holder of Registration

Certificate

/Licence /Permission.]

Related AI tags, queries and research notes

Translation